

Mohajjam Khan v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 23 August 2023 · 2023:AHC:169677-DB · Writ-C No. 28591 of 2023 · **Disposed; Clause 6.8 objection in two weeks, decision in three.**

HEADNOTE

Writ disposed of without any opinion on the merits. On a statement of the Electricity Department accepted by the petitioner, he is directed to file an application or objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 within two weeks, and the Department is directed to decide it within three weeks of receipt.

FACTUAL SUMMARY

Mohajjam Khan filed Writ-C No. 28591 of 2023 before the Allahabad High Court against the State of Uttar Pradesh and four others, impleading the Electricity Department. Counsel for the Department told the Court that if the petitioner filed an application or objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005, appropriate orders would be passed after considering all aspects of the case. The petitioner's counsel accepted that course and sought two weeks to file, with a speaking order within a reasonable time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Clause 6.8 application or objection in place of a writ on merits

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with a direction that the petitioner file an appropriate application or objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 within two weeks, and that the Electricity Department decide it within three weeks of receiving it. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy

On the Electricity Department's statement, accepted by the petitioner, the writ was disposed without a finding on merits and the consumer was directed to file a Clause 6.8 application or objection within two weeks, to be decided by the Department within three weeks of receipt. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S GRIEVANCE AGAINST THE ELECTRICITY DEPARTMENT

The Court expressly declined to express any opinion on the merits and left the application or objection to be decided by the Department under Clause 6.8. ¶ 1